

MEMORANDUM OF UNDERSTANDING

Between

NATIONAL CAPITAL DISTRICT SMALL CRAFT BOARD

and

ROYAL PAPUA NEW GUINEA CONSTABULARY – WATER POLICE DIRECTORATE

FOR

JOINT COOPERATION ON SMALL CRAFT REGISTRATION, LICENSING AND ENFORCEMENT
OPERATIONS

2025

1.0 PREAMBLE

This **Memorandum of Understanding (MoU)** is made this day of 2025,

Between:

The National Capital District Small Craft Board (hereafter referred to as *the Board*), being the statutory authority established under the Small Craft Act 2011, responsible for the registration, licensing, and regulation of small craft operating within the waters of the National Capital District (NCD);

And

The Royal Papua New Guinea Constabulary (RPNGC) – Water Police Directorate (hereafter referred to as *the Water Police*), headquartered at Konedobu, Port Moresby, responsible for enforcing national laws and maintaining public safety and order within Papua New Guinea’s inland and coastal waters.

Both Parties are hereinafter referred to collectively as “*the Parties*.”

2.0 PURPOSE

The purpose of this MoU is to establish cooperation and coordination between the Water Police and the NCD Small Craft Board for the effective enforcement of the Small Craft Act 2011, particularly regarding:

- Registration and licensing of small craft and operators;
- Joint inspection and compliance patrols;
- Awareness and community engagement programs; and
- Information sharing and reporting of enforcement outcomes.

3.0 OBJECTIVES

The objectives of this MoU are to:

1. Facilitate joint operations to ensure compliance with vessel registration and operator licensing requirements under the Small Craft Act 2011.

2. Enable Water Police officers to conduct inspections and enforcement operations on behalf of, or in conjunction with, authorised inspectors of the Small Craft Board.
3. Establish an agreed arrangement for fuel reimbursement by the Board for enforcement operations conducted within NCD waters.
4. Encourage collaboration on community awareness programs concerning boating safety, registration, and compliance.
5. Ensure consistent reporting of enforcement outcomes including vessels inspected, infringements issued, arrests made, and craft impounded.
6. Strengthen inter-agency cooperation for maritime safety and governance within the National Capital District.

4.0 OBLIGATIONS OF THE PARTIES

4.1 The NCD Small Craft Board undertakes to:

- Coordinate with the Water Police to identify operational priorities and compliance risk areas within NCD waters.
- Provide legislative materials, registration lists, and any other necessary information to support enforcement.
- Reimburse fuel costs used in approved enforcement operations, based on an agreed hourly rate, subject to prior approval where possible.
- Participate in community awareness and education programs alongside the Water Police.
- Maintain and share up-to-date data on registered vessels and licensed operators.

4.2 The Water Police Directorate undertakes to:

- Conduct inspections, compliance patrols, and enforcement operations on behalf of or with authorised inspectors from the Board.
- Ensure all activities are undertaken lawfully under the Small Craft Act and RPNGC operational procedures.
- Provide monthly operational returns to the Board detailing:
 - Number of vessels stopped and inspected;
 - Infringements issued;
 - Arrests made;
 - Craft impounded; and
 - Observations and compliance trends.
- Support community awareness and engagement activities where operationally feasible.
- Maintain the highest professional, ethical, and safety standards during all enforcement and public interactions.

5.0 FINANCIAL ARRANGEMENTS

- Fuel reimbursement will be calculated at an agreed hourly rate according to vessel type and operational duration.
- Prior approval for fuel expenditure will be obtained from the Board where practical.
- Reimbursement claims will be accompanied by operational returns and a summary of hours and fuel used.

6.0 INFORMATION SHARING AND CONFIDENTIALITY

- The Parties will exchange relevant data, intelligence, and enforcement statistics for operational and reporting purposes.
- All shared information will be treated as confidential and used strictly for official purposes.
- Any media release or public statement relating to joint operations will be jointly approved by both Parties before publication.

7.0 COMMUNITY AWARENESS AND EDUCATION

- The Parties agree to cooperate in awareness campaigns and community engagement programs focused on small craft registration, safety, and operator licensing.
- Participation by the Water Police will depend on operational availability and resources.

8.0 LEGAL STATUS AND LIABILITY

- This MoU does not create a legal partnership or agency relationship.
- Personnel from each Party remain employees of their respective organisations.
- Each Party will be responsible for the acts and omissions of its own officers, employees, and agents.

9.0 COORDINATION, MEETINGS AND REPORTING

- Coordination meetings shall be held bi-annually or as required to review operational performance, reporting, and financial arrangements.
- A review of the MoU will be conducted after six months of implementation to assess effectiveness and recommend improvements.

10.0 DURATION, VARIATION AND TERMINATION

- This MoU takes effect from the date of signature and will remain in force for a period of four (4) years, unless earlier terminated by either Party.
- Either Party may terminate this MoU by giving 60 days' written notice to the other.

- The MoU may be amended or varied by mutual written consent of both Parties.

11.0 POINTS OF CONTACT

For the Royal Papua New Guinea Constabulary – Water Police Directorate:

Director, Water Police Directorate
RPNGC Headquarters, Konedobu, Port Moresby
Tel: Email:

For the NCD Small Craft Board:

Hitolo Garia

Registrar, NCD, Small Crafts
Department of Transport Compound, Port Moresby
Tel: (+675) 8239 4576 Email: registrar@ncdsmallcraft.com

12.0 SIGNATORIES

IN WITNESS WHEREOF, the undersigned hereby agree to the terms and conditions set forth in this Memorandum of Understanding.

**For and on behalf of the
Royal Papua New Guinea Constabulary – Water Police Directorate**

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David Manning, MBE, OStJ, DPS, QPM
Commissioner of Police
Date:

**For and on behalf of the
National Capital District Small Craft Board**

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Chairman
NCD Small Craft Board
Date: